

SEE ALSO

- Newsletter of December 3, 2024
- Provision of April 11, 2024

[doc. web n. 10076453]

Provision of September 26, 2024

*The executive effectiveness of the provision has been suspended, by decree of the Court of Rome of November 19, 2024, limited to the part highlighted in the device of this provision.

Register of provisions

n. 588 of September 26, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by Prof. Pasquale Stanzione, president, Prof. Ginevra Cerrina Feroni, vice president, Dr. Agostino Ghiglia and Attorney Guido Scorza, members, and Cons. Fabio Mattei, general secretary;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legislation to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and in www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the general secretary pursuant to Article 15 of Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

PREAMBLE

1. Introduction.

On the occasion of certain checks carried out within the framework of an independent procedure, initiated following a specific complaint submitted on XX (and then concluded with provision No. 235 of April 11, 2024, doc web n. 10019523) against the National Institute of Social Security (hereinafter "INPS") regarding the publication of personal data of thousands of participants (over 5000) contained in certain intermediate documents related to the "public competition for titles and exams, for 1858 positions of social protection consultant in the roles of INPS personnel, area C, economic position C1" (in particular, lists of admitted and not admitted candidates to the written and oral tests and the nominative list on the evaluation of candidates' qualifications), the Guarantor also noted, on XX, that by accessing the URL <https://www.inps.it>... INPS had also published two additional files named "final ranking" (containing references to 5384 candidates) and "final ranking - winners" (containing references to 1858 candidates), concerning the same competitive procedure. These rankings, still present on the official INPS website, contain the indication of the first and last names of the winners and eligible candidates, the date of birth, the score resulting from the average of the grades obtained in the written tests, the score resulting from the evaluation of qualifications, the score obtained in the oral test, the total score as well as the reference to any presence of precedence titles, preference titles, and the specific indication of admission with reservation.

In particular, at the bottom of the document, there is a legend that clarifies that the reference to "code R", corresponding to the names of the interested parties, corresponds to the specific conditions of the

candidates provided for respectively by Articles 678 and 1014 of the Military Ordinance Code (Legislative Decree No. 66 of 2010) relating to “incentives for the recruitment of auxiliary officers” and “reservations of positions in public employment”; that the indication of the asterisk in the column “preference titles” corresponds to the conditions referred to in Article 5 of Presidential Decree No. 487 of 1994; that the column indicated with “AMM. RIS.” corresponds to the indication of candidates “Admitted with reservation for pending judgments”.

2. The investigative activity.

In this regard, specific challenges were made to INPS as early as XX (prot. n. XX) and the hearing of the data controller was also held regarding the different and prior conduct carried out through the dissemination of personal data contained in the intermediate documents of the aforementioned competitive procedure, and therefore the related procedure, originated from a complaint, was in the definition phase (which, as mentioned, was concluded with provision No. 235 of April 11, 2024, doc web n. 10019523), the Office, based on the further elements subsequently acquired from the aforementioned checks, notified INPS, pursuant to Article 166, paragraph 5, of the Code, of the initiation of an independent procedure for the adoption of the provisions referred to in Article 58, paragraph 2, of the Regulation concerning distinct conducts, which have meanwhile emerged and been ascertained,

although concerning acts related to the same bankruptcy procedure.

In particular, specific administrative violations have been contested against INPS in relation to the conduct consisting of having disseminated online the final acts, namely the rankings of the aforementioned procedure, containing numerous personal data, including health-related information, pertaining to thousands of individuals (approximately 5,384 among winners and eligible candidates of the aforementioned procedure), in the absence of an appropriate legal basis and in a manner not compliant with the principles of “lawfulness, fairness, and transparency,” as well as “data minimization,” in violation of Articles 5, 6, 9, and 10 of the Regulation, as well as Articles 2-ter and 2-septies, paragraph 8, and 2-octies of the Code.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

In a note dated XX, INPS submitted a defensive memorandum, stating, in particular, that:

- “as indicated in the notice published on the Institute's official website, both rankings had been approved and published on the official site as early as XX. In particular, in the aforementioned notice, it was stated that ‘based on the authorized hires, the Institute will appoint XX, a total of 4,124 units of personnel (1,858 winners and 2,266 eligible candidates), unless subsequent and different indications are provided in this regard.’ Since XX, it was therefore known that 2,266 eligible candidates should already be considered winners and appointed”;
- “subsequently, as indicated in the notice published on XX, due to the outcome of certain ongoing proceedings before the TAR, it was necessary to modify the final ranking and that of the winners, and at the same time, it was also made known the appointment of another 719 eligible candidates through the scrolling of the final ranking [...]. Finally, from the notice published on XX, it appears that, also following specific authorizations pursuant to current regulations, the progressive hiring of all candidates has been completed and the full scrolling of the final ranking has been carried out”;
- “therefore, since both the final ranking and that of the winners had been published since XX, and no objections had been raised in the context of the proceedings opened on XX, INPS had developed a reliance, which appears reasonable, regarding the fact that the actions of the Institute concerning the publication of the rankings were deemed exempt from criticism. Moreover, as of XX, the Institute had progressively completed the full scrolling of the ranking of eligible candidates who thus became all winners”;
- “first of all, the fundamental norm referred to in Article 7 of the Presidential Decree of January 10, 1957, No. 3, comes into consideration, according to which ‘after the competition tests have been completed, the commission forms the merit ranking indicating the score achieved by each candidate.’ Subsequently, the competent manager, having recognized the regularity of the procedure, approves it and declares the winners of the public selection. The third paragraph then establishes that ‘the ranking

of the winners of the competition and that of the declared eligible candidates are published... Notice of this publication is given by means of a notice... From the date of publication... the term for any appeals begins.' Therefore, according to the legal regulations concerning public competitions, the publicity obligation includes both winners and eligible candidates";

- "the provisions of the Presidential Decree of May 9, 1994, No. 487 and subsequent amendments and integrations, containing the regulation for hiring in public employment, which constitutes the secondary normative reference source, are also taken into consideration. According to Article 15, paragraph 6 of the aforementioned Presidential Decree, 'the rankings of the competitions referred to in this regulation... are published simultaneously on the Portal referred to in Article 35-ter of Legislative Decree No. 165 of March 30, 2001, and on the website of the interested administration. From the date of such publication, the terms for appeals begin';

- "it should be noted that the norm does not refer to the ranking of winners, but to the ranking in general, and consequently, in its entirety, including both winners and eligible candidates. It should also be considered that, based on Article 70, paragraph 13 of Legislative Decree No. 165 of March 30, 2001, and subsequent amendments and integrations, public administrations are allowed, within their respective regulations, to adopt their own regulations for the recruitment of personnel";

- "by virtue of this regulatory provision, INPS adopted its own 'Regulation for recruitment procedures for the hiring of non-executive personnel at INPS on a permanent basis,' with Presidential Determination No. 162 of November 7, 2017. Article 15 of the Institute's regulation provides that 'the final merit ranking and the specific ranking of winners... are published on the official website of the Institute...'. The ranking of winners is a specific ranking compared to the final merit ranking, which includes both winners and eligible candidates, so that each is informed of the position they hold";

- "it should also be noted that the competition announcement [...] in Article 11 states that 'The final ranking and the specific ranking of winners... are published on the official website of INPS.' And with the application for participation, the candidate expresses their 'consent to the processing of personal data' (Article 3, paragraph 9, letter p) of the announcement)";

- "in any case, it is reiterated that, as stated above...

as previously mentioned, the Institute, within a few months, has proceeded with the full scrolling of the final ranking and the hiring of all eligible candidates who have thus become winners. In this context, the scope of Article 19, paragraphs 1 and 2, of Legislative Decree No. 33 of March 14, 2013, referenced by the Department of Public Realities, must be evaluated;

- "with Legislative Decree No. 33 of 2013, the legislator intended to establish provisions aimed at strengthening the tool of transparency, which represents a fundamental measure for the prevention of corruption. Hence, the introduction of a whole series of new obligations that do not repeal or intend to replace the specific regulations of each relevant sector, but rather to strengthen them. In particular, regarding public competitions, Article 19 of Legislative Decree No. 33 of 2013 states that '1. Without prejudice to other obligations of legal publicity, public administrations publish the competition announcements for the recruitment, in any capacity, of personnel within the administration, as well as the evaluation criteria of the Commission, the outlines of the tests, and the final rankings, updated with any scrolling of eligible non-winners. 2. Public administrations publish and keep constantly updated the data referred to in paragraph 1';

- "the purpose of the regulation is not to overturn or innovate regarding the publication obligations of the rankings already provided for by sector regulations, nor to prohibit the publication of complete lists of both winners and eligible candidates, but rather to stipulate that the evaluation criteria of the Commission and the outlines of the tests must also be published and that the rankings must always be kept updated when, as a result of the scrolling, the eligible candidates become winners. Transparency requires that, in such cases, the published rankings must be updated. In other words, the principle that the legislator intended to affirm with Article 19 of Legislative Decree No. 33 of 2013, as clearly stated in the second paragraph, is that the data contained in the rankings must be kept constantly updated, not that the lists of eligible candidates cannot be published";

- "as for the published data, the Institute has, first of all, published the name and surname of the winners and eligible candidates (and in some cases of homonymy, the date of birth) and the final score obtained by each candidate";

- "additionally, Anac, with resolution No. XX of XX, stated that the publication of winners identified solely through a numerical ID code does not comply with the regulatory provisions regarding transparency obligations. In addition to the final score, INPS has also published the scores obtained in the written and oral tests. Moreover, this complies with the principles of precision, adequacy, accuracy, and correctness of the published data, which must be suitable for the purpose for which they are published, which is to allow all competitors, including non-winners, to have the useful elements to assess whether and what actions, even legal, to take to protect their interests, considering that, as provided by the aforementioned sector regulations, the term for appeal begins from the publication of the rankings";
- "moreover, it was not possible to achieve, through the publication of anonymous data or other methods that allow identifying the interested party only if necessary, those purposes of transparency, impartiality, and clarity pursued in this specific case, given that it is a competition with tens of thousands of participants and almost six thousand eligible candidates with frequently identical scores and with decimal differences. In this regard, it is noted that the same Article 35, paragraph 3 of Legislative Decree No. 165 of March 30, 2001, and subsequent amendments and integrations, provides that 'adequate publicity of the selection and methods of execution must be guaranteed to ensure impartiality and ensure cost-effectiveness and speed of execution'";
- "as for the charge of having published personal data also related to health, the following observations are made. The published table contains, among other things, two columns respectively dedicated to the existence of any titles of precedence or preference of the candidates [...]. In particular, as indicated in the legend at the bottom of the table, the asterisk corresponds to the existence of one of the conditions referred to in Article 5 of Presidential Decree No. 487 of May 9, 1984. As is known, Article 5 of Presidential Decree No. 479 of 1994 provides for a series of preferences in case of equal scores depending on the titles held by the candidate. There are as many as 14 possible titles of preference, each different from the other";
- "as is evident from reading the regulation, the simple asterisk certainly does not allow knowing what title of preference the candidate holds and certainly does not indicate whether it is a condition of disability, a greater number of dependent children, or a younger age, or something else";
- "the mere placement of a simple asterisk simply allows all winning and eligible candidates to understand whether the candidate or candidates who precede them in the ranking have only obtained a better score than them in the written and oral tests or also hold a title of precedence or preference, without in any way revealing what the title of precedence or preference is";
- "in this way, the published ranking allows interested parties to have more complete information to understand the criteria and evaluations reported in the tests that led to the assignment of the final score, to assess whether and what initiative to take to protect their interests, without disseminating excessive data and certainly not data related to health".

candidate, including the date of birth, the score derived from the average of the grades obtained in the written tests, the score resulting from the evaluation of qualifications, the score achieved in the oral test, the total score, as well as references to any precedence titles, preference titles, and the specific indication of admission with reserve, for a total of 5,384 individuals among winners and eligible candidates of the aforementioned procedure.

Preliminarily, it should be clarified that, although the INPS declared that it published in this context exclusively the name and surname of the winners and eligible candidates (and in some cases of homonymy the date of birth) and the final score reported by each candidate, it has been ascertained that the two files mentioned above also contain other information related to each candidate.

****Candidate Scores****

The score derived from the average of the grades obtained in the written tests, the score resulting from the evaluation of qualifications, the score achieved in the oral test, the total score, as well as the reference to any presence of precedence titles, preference titles, and the specific indication of admission with reservation.

****Legal Framework****

In this regard, it is noted that the legal provisions that establish, in general, the publicity of the rankings of competitions and selective tests (see, in particular, Presidential Decree No. 3 of January 10, 1957; as well as Article 15 et seq. of Presidential Decree No. 487 of May 9, 1994 “Regulations containing rules on access to employment in public administrations and the procedures for conducting competitions, unique competitions, and other forms of recruitment in public employment,” also following the amendments made by Presidential Decree No. 82 of June 16, 2023, and, more generally, on the publicity of the recruitment procedures for personnel in public administrations, Article 35 of Legislative Decree No. 165 of March 30, 2001) serve the function of allowing interested parties, participants in competitive or selective procedures, to activate forms of protection of their rights and to control the legitimacy of administrative action. Following the amendments to Presidential Decree No. 487 of 1994, made by Presidential Decree No. 82 of June 16, 2023, the obligation to notify the publication of the rankings—originally carried out through the official bulletins of the respective entities and by notice in the Official Gazette of the Republic—must now be realized through the publication of the same on the Unified Recruitment Portal (as per Article 35-ter of Legislative Decree No. 165 of March 30, 2001, which exempted public administrations and local authorities from the obligation to publish competitive procedures in the Official Gazette) and on the website of the concerned administration; from the date of such publication, the terms for appeal commence (see Article 15, paragraph 6 of Presidential Decree No. 487 of May 9, 1994, and Article 35 of Legislative Decree No. 165 of March 30, 2001).

****Privacy Considerations****

As traditionally highlighted by the Guarantor specifically regarding the publicity of rankings, in a very dated regulatory framework characterized by norms that have accumulated over time, the publication of personal data online, unlike traditional forms of publicity, constitutes a particularly invasive form of data dissemination as it allows anyone, due to common search engines external to the sites, to indiscriminately and in real-time retrieve a substantial set of personal information made available online, not always updated and of different nature (see, in particular, paragraph 6.1 of the Guidelines on the processing of personal data of workers for the purpose of managing the employment relationship in the public sector, No. 23 of June 14, 2007, web document No. 1417809). Once published, in fact, the data risks remaining online for an indefinite period and can be used, even by cross-referencing with other information available on the web, by anyone.

In utilizing this dissemination tool, it is therefore necessary to foresee adequate forms of selection of the information that could otherwise be aggregated massively through a common search engine external to the sites and susceptible to further uses. Although, therefore, the sector-specific regulatory framework, sometimes very dated, such as that contained in Presidential Decree No. 3 of 1957, expressly provides for specific and circumscribed forms of dissemination, specifically through publication in the administration's bulletin (or in other cases through the mere availability of documents at offices or the mere posting of acts on bulletin boards or at the administration's public notice board), such forms of publication do not, by themselves, authorize the transposition of all documents containing personal data onto the institutional website.

****Guidelines and Recommendations****

In this context, the Guarantor has, over time, provided specific indications to public administrations regarding the precautions to be adopted for the dissemination of personal data on the Internet for the purposes of transparency and publicity of administrative action, particularly in 2014, with the “Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities” (Provision No. 243 of May 15, 2014, web document No. 3134436, Parts I and II, especially paragraph 3.b) clarifying, also through numerous decisions on individual cases adopted against specific administrations, that the presence of a publicity regime cannot entail any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles regarding the protection of personal data, as confirmed by the personal data protection system contained in the Regulation, under which it is provided that the data controller must implement

“appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed” and must be “able to demonstrate”—in light of the principle of “accountability”—that it has done so in accordance with Articles 5, paragraph 2, 24, and 25, paragraph 2, of the Regulation (see among many, Provision No. 287 of July 6, 2023, web document No. 9920145 and the measures cited therein).

****Transparency Obligations****

The provisions regarding administrative transparency, while saving the aforementioned provisions related to legal publicity, also provide specific publication obligations in the “Transparent Administration” section of the institutional website of the administrations. According to what is provided by Legislative Decree No. 33 of March 14, 2013, “without prejudice to...”

remaining the other obligations of legal publicity, public administrations publish the announcements for the recruitment competitions, for any title, of personnel within the administration, as well as the evaluation criteria of the Commission, the outlines of the tests, and the final rankings, updated with any movement of eligible non-winners. Public administrations publish and constantly update the data referred to in paragraph 1” (art. 19, paragraphs 1 and 2; see, most recently, provision of April 11, 2024, no. 235, web doc no. 10019523, as well as provisions of March 23, 2023, no. 83, web doc no. 9888096, and April 28, 2022, no. 151, web doc no. 9778996, and the previous provisions referenced therein, including, in particular, provision of November 25, 2021, no. 407, web doc no. 9732406). The aforementioned provisions define, from the perspective of data protection, the scope of processing permitted by the legal system and constitute its legal basis, establishing limits, conditions, and prerequisites for the online publication of personal identifying data of the interested parties in the context of fulfilling the obligations of publishing the final rankings of the competitive procedures.

In this regard, it is useful to highlight what was represented by the Guarantor to Parliament specifically regarding the balance struck by the legislator between competing constitutionally relevant values in the regulatory system governing the publicity of public personnel recruitment procedures and, in particular, the risks for the interested parties in the event of online dissemination of data relating to eligible non-winners, clarifying specifically that “participation in a competitive selection (and the related outcome), even while holding another employment relationship, constitutes a data that deserves adequate protection (also for the purposes of Articles 8 of the Workers' Statute and 10 of Legislative Decree no. 276/2003), according to methods that can balance, in a balanced manner, the principle of administrative transparency and the right to personal data protection” (see Memorandum of the President of the Guarantor for the protection of personal data on the draft budget law 2020, Commission 5°, Budget, of the Senate of the Republic, of November 12, 2019, web doc 9184376, paragraph 4). This is especially in the presence of the indexing and reusability of data and, in general, due to the risks associated with the greater exposure of information on the web.

In this context, as indeed expressly recalled by INPS in its defensive memoranda, the National Anti-Corruption Authority (hereinafter, ANAC) highlighted the necessity that the publication concerns identifying data of the “winners” - given that the data relating to eligible non-winners must be published, based on the law, when the administration proceeds to update the rankings with the movement of the eligible - clarifying in particular that any “publication of the winners identified only through a numerical ID code is not compliant with the regulatory provisions regarding transparency obligations” (see ANAC resolution no. 525 of November 15, 2023, see also, most recently, ANAC “Data publication schemes for standardization pursuant to art. 48 Legislative Decree 33/2013, Scheme art. 19”, available on the official ANAC website).

This approach has been further confirmed by the Guarantor in the observations contained in the opinion on the standard publication schemes prepared by ANAC – concerning, among other things, art. 19 of Legislative Decree no. 33/2013 – pursuant to art. 48, paragraphs 1 and 3, of the same decree, in which it was specified that, even in fulfilling the publication obligations, with reference only to the winners of public competitions and the eligible winners following the movement of the ranking, the name and surname must be indicated, and possibly the date of birth (for example, in case of homonymy), as well as the position in the ranking (see provision of February 22, 2024, no. 92, web doc

no. 9996090 where it states: “according to the principle of data minimization (art. 5, paragraph 2, letter c, GDPR) and the Guidelines of the Guarantor in this regard – with reference to the publication of the data provided for in the scheme relating to art. 19 of the winning subjects of public competitions (and of the eligible winners following the movement of the ranking) the name and surname, and possibly the date of birth (for example, in case of homonymy), as well as the position in the ranking (thus excluding other unnecessary information such as place of birth, tax code, residence, etc.)”).

Nor can the reference made by INPS to the provisions contained in the “Regulation of recruitment procedures for the hiring of non-executive permanent staff at INPS” and in the competition announcement be considered pertinent, as, although the public competition announcement, as a general administrative act, is a suitable source to legitimize the processing of personal data of candidates for a specific qualification pursuant to art. 2-ter of the Code, such act cannot contravene or modify the superior reference norms, having a mere integrative effect on the legal system.

The hierarchical criterion of the sources of law indeed establishes the prevalence of the higher-ranking source over that of lower level, preventing the latter from derogating from or conflicting with the content of the superior source; therefore, one does not find in the general administrative act the ability to make changes in the legal system – such as would be the unprovided publication of personal data of candidates participating in the competitive procedure – in relation to the processing of personal data, as such act cannot fully absorb the discipline.

valid, whose essential characteristics must be and remain outlined by the norms of higher-ranking regulations (see, the aforementioned provision no. 235 of April 11, 2024, doc web no. 10019523 and previous references therein, adopted against INPS regarding the dissemination of personal data contained in various intermediate acts related to the same competitive procedure).

In fact, specifically regarding the publication of acts and documents by administrations within the framework of competitive and selective procedures, in the context of the European-derived data protection regulation, from the perspective of legal certainty, as well as the principle of non-discrimination, differentiated levels of protection for personal data are not permitted - neither on a territorial basis nor at the level of individual administrations - especially when, as in the case at hand, the matter has already been subject to balancing and regulation by the legislator with uniform provisions at the national level, through the aforementioned sector-specific provisions regarding transparency and publicity of the outcomes of competitive procedures applicable to all state administrations as per Article 1, paragraph 2 of Legislative Decree no. 165 of 2001.

In particular, regarding the possibility that, as a result of the amendments to the Code made by Decree Law no. 139 of 2021, a dissemination of personal data could be configured based on an autonomous identification of purposes by the entity, the Guarantor has recently clarified that the legal basis for processing must also be suitable in light of the "constitutional order" of the Member State, in compliance with the principle of proportionality (consideration 41 and see also Constitutional Court ruling no. 271/2005, according to which the regulation of personal data protection falls within the exclusive state competence related to the "civil order"; see, in this regard, provision no. 125 of April 13, 2023, doc web 9907846; provision no. 287 of July 6, 2023, doc web 9920145; provision no. 286 of July 6, 2023, doc web 9920116, as well as for similar considerations regarding the introduction by regional ordinance of personal data processing of employees in the emergency context due to the spread of the Covid-19 virus, provision of July 22, 2021, no. 273, doc. web. no. 9683814).

In this regard, Article 70, paragraph 13 of Legislative Decree no. 165 of 2001, also referenced by INPS, expressly provides that "in matters of recruitment" of personnel, public administrations are required to comply with the aforementioned national provisions which, as stated, constitute the legal basis for all processing, including dissemination, within the framework of competitive procedures. Article 2-ter of the Code, although it provides that the legal basis for processing may consist not only of law and regulation but also of general administrative acts, nevertheless the provisions of the public competition announcement cannot be invoked by INPS as a legal basis for disseminating online the personal data of participants in the competitive procedure, as an administrative act, however general, cannot derogate, contravene, or modify the aforementioned sector-specific norms, which are,

moreover, of primary rank (see, the aforementioned sector-specific provisions regarding transparency in public competitions).

Nor is it relevant to refer to the circumstance that candidates for selection have "with the application for participation, [...] expressed their 'consent to the processing of personal data'," as again reported in INPS's note, since, as already indicated in the provision of April 11, 2024, the processing of data aimed at the hiring of personnel by a public entity finds its legal basis in the specific sector regulations that govern access to employment in public administrations and the modalities for conducting public competitions (see, the aforementioned regulations) and not, instead, in the consent of the interested parties, due to the imbalance in the relationship between the data controller and the data subject (consideration no. 43 and Article 88 of the Regulation; on this point see, among many, with specific regard to the public context, in general see provision no. 317 of September 16, 2021, doc web 9703988; with specific regard to the work context see provision no. 170 of April 29, 2021, doc web no. 9681778 and no. 160 of September 17, 2020, doc web no. 9461168; see also, in a consistent sense, EDPB Guidelines on consent under EU Regulation 2016/679 - WP 259 - of May 4, 2020, specifically par. 3.1.1; Opinion 2/2017 on data processing in the workplace, WP 249).

Furthermore, regarding the indication within the documents subject to publication of the "legend" that clarifies the reference to specific subjective conditions related to individual candidates, it is noted that the indication of the asterisk in the column "preference titles" corresponds to the indication of the preference titles referred to in Article 5 of Presidential Decree 487 of 1994.

Although, as represented by INPS, "the simple asterisk certainly does not allow one to know what the preference title claimed by the candidate is and certainly not whether it is a condition of disability rather than the greater number of dependent children or younger age or something else," the indication of the occurrence of preference or precedence titles in relation to a candidate produces the effect of associating to a natural person one or more subjective conditions among those listed by law (by way of mere example, number of dependent children, honorable service in administrations, age, disability/invalidity...).

The aforementioned information, not all attributable to special categories of data, refers to the specific subjective conditions concerning the candidates or their family members must undoubtedly be addressed by the administration, based on the applicable regulations, for the drafting of the final ranking and must be evaluated by the administration for the verification of the professional requirements established by law (see, art. 5 of Presidential Decree No. 487 of 1994), but, in light of the regulatory framework of the sector, the prerequisites for their dissemination through online publication do not exist (see also the numerous cases of publication of teacher rankings in which acronyms related to preference titles appeared - e.g. "S" category of disabled and civil mutilated individuals, provision of 27.1.2021, No. 28, web doc 9576756; 11.2.2021, No. 51 web doc 957226; 21.4.2021, No. 153, web doc 9685245).

The fact that some of these conditions are particularly sensitive - such as, among others, belonging "to the category referred to in Law No. 68 of 1999", being "a civil or service mutilated or disabled person", "an orphan of the fallen or a child of mutilated, disabled, and permanently unfit individuals for work due to service in the public and private sectors", or "children of healthcare professionals [...] who died as a result of SarsCov-2 infection contracted in the course of their duties" (see art. 5 of Presidential Decree of May 9, 1994, No. 487), as they relate to the health status of the individuals concerned or their family members (see art. 4 par.1, No. 15 of the Regulation) - may also lead to the possibility of deriving information related to the health status of a person (candidate or their family members).

Moreover, there have been numerous measures from the Guarantor in recent years that have clarified, for example, that even references to normative bodies that are notoriously related to benefits and guarantees for the assistance, social integration, and employment rights of disabled persons or their family members (such as Law No. 104 of 1992 "Framework Law for the Assistance, Social Integration, and Rights of Disabled Persons" or Law No. 68 of 1999 "Regulations for the Right to Work of Disabled Persons"), can reveal information about a person's health status (see, in this regard, provisions of

January 11, 2023, No. 3 web doc No. 9857610; provisions of April 27, 2023, No. 168, web doc 9896845; provisions of September 1, 2022, No. 290 web doc 9811361, provisions of April 28, 2022, No. 150, web doc No. 9777200 and provisions of May 28, 2020, No. 92, web doc No. 9434609).

From the documentation on file, it has also emerged that the acronym "AMM. RIS." refers to candidates "Admitted with reservation due to pending judgments." During the investigation, INPS clarified that "the expression 'Admitted with reservation due to pending judgments' simply refers to the normal administrative litigation that may arise in the course of a public competition for various reasons [lack of any of the participation requirements starting from age or the appeal of the outcome of the pre-selection test or an intermediate test] and may involve an order from the competent Administrative Court that indeed provides for the admission of the candidate with reservation and that, therefore, 'it is not possible to associate the expression 'Admitted with reservation due to pending judgments' with the existence of crimes or pending criminal proceedings' - for which reason it is believed that, in practice, no processing of judicial data has taken place (art. 10 Regulation and 2-octies of the Code). That said, it is necessary to consider the following.

For the reasons outlined above, although such information may be processed by the administration, based on the applicable regulations, for the drafting or updating of the ranking, the prerequisites for the online dissemination of such data do not exist as it is not provided for by sector regulations; moreover, the aforementioned annotation, alongside the names of specific candidates, contains, in any case, information that is not necessary and exceeds the purposes of the processing (see, in particular, provision of March 24, 2022, No. 97, web doc No. 9760883).

From a different perspective, it is also necessary to highlight that the acronym "AMM. RIS.", as explained in the legend at the bottom of the ranking with the expression "Admitted with reservation due to pending judgments", appears evocative of events related to "criminal convictions and offenses" or is otherwise likely to generate confusion regarding the existence of the condition of being accused or investigated concerning the candidates to whom such information is associated, dangerously compromising the personal identity and reputation of the individuals concerned, a circumstance further amplified due to the aforementioned risks associated with the greater exposure of information on the web, their indexing, and the potential reusability by third parties.

In light of what emerged at the conclusion of the investigation and the statements made by INPS, it has been established that the publication of the aforementioned rankings containing numerous personal data relating to thousands of people (about 5384 among winners and eligible candidates of the aforementioned procedure) has, at this time, been carried out in the absence of an adequate legal basis and in a manner not compliant with the principles of "lawfulness, fairness, and transparency," as well as "data minimization," in violation of articles 5, 6, 9 of the Regulation, as well as 2-ter and 2-septies paragraph 8 of the Code.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under art. 168 of the Code - although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation act.

the procedure and are insufficient to allow the archiving of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by INPS is noted, for having published on its institutional website two files, named "final ranking" and "final ranking - winners," containing, in addition to the indication of the name and surname of the candidates and their date of birth, the score derived from the average of the grades obtained in the written tests, the score derived from the evaluation of qualifications, the score obtained in the oral test, the total score, as well as the reference to the possible presence of precedence titles, preference titles, and the specific indication of admission with reserve, of multiple interested parties, specifically 5,384 among winners and eligible candidates of the aforementioned procedure, in violation of Articles 5, 6,

and 9 of the Regulation, as well as Article 2-ter and 2-septies, paragraph 8 of the Code. Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, relating to Articles 5, 6, and 9 of the Regulation, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

5. Corrective Measures (Article 58, paragraph 2, letter f) of the Regulation). During the investigation, it appears that the personal data of the interested parties, in particular the date of birth, the score derived from the average of the grades obtained in the written tests, the score derived from the evaluation of qualifications, the score obtained in the oral test, the total score, as well as the reference to the possible presence of precedence titles, preference titles, and the specific indication of admission with reserve, of 5,384 among winners and eligible candidates of the aforementioned procedure, continue to be currently available on the institutional website of INPS. Article 58, paragraph 2, letter f), of the Regulation provides that the Garante has the corrective powers to “impose a temporary or definitive limitation on the processing, including the prohibition of processing.” In this context, it is deemed necessary, due to the illegality of the processing carried out, to order, pursuant to Article 58, paragraph 2, letter f), the limitation of the ongoing processing by prohibiting the data controller from any further unlawful dissemination, as it is not provided for by law and is contrary to the principles of data protection of the interested parties. Pursuant to Article 157 of the Code, INPS must also communicate to this Authority the initiatives undertaken in order to implement the above order pursuant to the aforementioned Article 58, paragraph 2, letter f) of the Regulation within thirty days from the notification of this provision.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code). The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case]” and, in this context, “the Board [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Garante Regulation No. 1/2019). In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that: with specific regard to the nature, gravity, and duration of the violation, it is necessary to consider, in particular, the significant number of interested parties involved (over 5,000) and the circumstance that the ranking is still subject to online publication (cf. Article 83, paragraph 2, letter a), of the Regulation); from the perspective of the level of damage suffered by the interested parties, it should be emphasized that due to the manner in which the dissemination occurred, they have also been exposed to reputational risks (cf. Article 83, paragraph 2, letter a), of the Regulation); with regard to the subjective profile of the violation, INPS acted under the mistaken belief that it could pursue the objectives of transparency of administrative action, without, however, taking into account the current regulatory framework and the indications provided over time by the Garante to all public entities in this matter, both with the “Guidelines on the processing of personal data, including in acts and administrative documents, carried out for...

****Purpose of publicity and transparency on the web by public entities and other obligated bodies**** mentioned above, as well as numerous decisions on individual cases (cf. art. 83, par. 2, lett. b), of the

Regulation); the processing has resulted in the dissemination of very sensitive personal data related to the personal and family matters of the data subjects, also attributable to special categories and health as referred to in art. 9 of the Regulation (cf. art. 83, par. 2, lett. g), of the Regulation); it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).

That said, it should be considered, in favor of the data controller, as a mitigating circumstance, that INPS has offered an adequate degree of cooperation with the Authority (art. 83, par. 2, lett. f), of the Regulation). However, there are previous specific violations of the same provisions of the Regulation and the Code, also in relation to the processing carried out within the same competitive procedure subject to this investigation (art. 83, par. 2, lett. e), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €50,000 (fifty thousand euros) for the violation of arts. 5, 6, 9 of the Regulation, as well as 2-ter and 2-septies paragraph 8 of the Code, as an administrative monetary sanction considered, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the processing involved personal data of thousands of data subjects leading to the online dissemination of numerous detailed pieces of information, also related to their personal and family matters, and in ways that could expose individuals to prejudicial effects even on a reputational level, it is also believed that the accessory sanction of publication on the website of the Authority of this provision should be applied, as provided for by art. 166, paragraph 7 of the Code and art. 16 of the Regulation of the Authority no. 1/2019.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

****ALL OF THE ABOVE STATED, THE AUTHORITY**** declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the National Social Security Institute - INPS for violation of arts. 5, 6, 9 of the Regulation, as well as 2-ter and 2-septies paragraph 8 of the Code of the Regulation, in the terms stated in the motivation;

****ORDERS**** the National Social Security Institute - INPS, represented by the legal representative pro tempore, with registered office at Via Ciro il Grande, 21 - 00144 Rome (RM) C.F. 80078750587, to pay the sum of €50,000 (fifty thousand) as an administrative monetary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****COMMANDS**** the INPS, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of €50,000 (fifty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with art. 27 of Law no. 689/1981;

pursuant to art. 58, par. 2, lett. f), the limitation of ongoing processing, prohibiting INPS from any further online dissemination of the personal data of the data subjects with reference to the date of birth, the score derived from the average of the grades obtained in the written tests, the score derived from the evaluation of qualifications, the score obtained in the oral test, *the total score as well as the reference to any presence of precedence titles, preference titles, and the specific indication of admission with reservation;

****DISPOSES****

- the publication of this provision on the website of the Authority pursuant to art. 166, paragraph 7, of the Code (cf. art. 16 of the Regulation of the Authority no. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation, of the violations and the measures adopted in accordance with art. 58, par. 2, of the Regulation (cf. art. 17 of the Regulation of the Authority no. 1/2019).

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 26, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei